

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

URGENT: Notice of Threatened Spoliation and Witness Intimidation – FormuKleen, Inc. v. Top Shipping Systems, FMC Docket No. 25-08

Pursuant to 46 C.F.R. § 502.147(j) and the Commission’s inherent authority to preserve the integrity of its proceedings, Complainant FormuKleen, Inc., by and through its Representative, hereby notifies the Commission of serious and potentially unlawful conduct by Respondent Top Shipping Systems (“TSS”) that may materially affect the integrity of this adjudication.

Earlier today, a representative of TSS, identified as Ricky Villena, verbally confronted Complainant’s principal on-site and, while smiling, stated:

“Are you looking for trouble?”

“Everything is scheduled to be destroyed on Monday.”

This threatening exchange was overheard by a third-party truck driver, who is currently preparing a contemporaneous written account. A TSS employee named Rachel reportedly attempted to de-escalate the situation by grabbing Mr. Villena’s arm and asking him to stop.

This conduct appears to constitute:

A. A direct threat of retaliatory action against a party to this proceeding;

B. A threat of imminent spoliation of material evidence;

C. An act of witness intimidation and interference with the Commission's adjudicative process.

We are preparing sworn affidavits and formal witness statements to document this event in full.

Notably, Respondent has repeatedly pressured FormuKleen to retrieve its goods, only to obstruct those efforts upon arrival, and is now threatening to destroy the very merchandise at issue, which constitutes physical evidence in this proceeding.

We respectfully request that the Commission take administrative notice of this incident and preserve it in the official record. Complainant further reserves the right to seek interim relief, sanctions, or protective orders as the Commission deems appropriate.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

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Signature:  _____

Date: 07/10/2025

CERTIFICATE OF SERVICE

I certify that on July 10th, 2025, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondents:

Ricky Villena

Vice President, Top Shipping Systems Corp.

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